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\* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

+ **CS(OS) 565/2019 & I.As. 15494/2019, 15495/2019, 1025/2021**

**SMT. SUMITRA SARKAR**

..... Plaintiff

Through: Mr. Abhijeet Sinha, Ms. Rimmi  
Bhardwaj & Mr. Sarthak G.,  
Advocates.

versus

**SH. INDRAJIT RAY & ORS.**

..... Defendants

Through: Mr. Priyadarshi Banerjee, Advocate  
for D-1.  
Mr. Vivek Kumar Tandon, Ms.  
Perna Tandon & Ms. Kanika Rothre,  
Advocates for D-2 to 4.

**CORAM:**

**HON'BLE MS. JUSTICE NEENA BANSAL KRISHNA**

**ORDER**

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**13.12.2023**

1. Learned counsels for the parties, on instructions, submits that there is no dispute *inter se* the parties in regard to each party being entitled to 1/6<sup>th</sup> share of the Property bearing No. J-1982, C.R. Park, New Delhi, approx 233 sq. yards with construction on Ground Floor, 1<sup>st</sup> Floor, 2<sup>nd</sup> Floor and 3<sup>rd</sup> Floor as show in the site plan.

2. in view of the submissions made, the Preliminary Decree is passed declaring each party to be entitled to 1/6<sup>th</sup> share of the aforesaid property as follows: -

- (i) Smt. Sumitra Sarkar, the plaintiff, is entitled to 1/6<sup>th</sup> share,
- (ii) Shri Indrajit Ray, the defendant No. 1, is entitled to 1/6<sup>th</sup> share,



- (iii) Smt. Supriya Sharma, defendant No. 2, is entitled to 1/6<sup>th</sup> share,
  - (iv) Smt. Suchitra Ray, defendant No. 3, is entitled to 1/6<sup>th</sup> share,
  - (v) Smt. Sunanda Mazumdar, defendant No. 4, is entitled to 1/6<sup>th</sup> share, and
  - (vi) Smt. Shikha Sengupta, defendant No. 5, is entitled to 1/6<sup>th</sup> share.
3. List for consideration of mode of partition of the aforesaid property by metes and bounds on 03.04.2024.

**NEENA BANSAL KRISHNA, J**

**DECEMBER 13, 2023**

***S.Sharma***